

23STCV14415 23STCV14415

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Case Number: 23STCV14415 Hearing Date: August 10, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Attorney Fees — with Motion to Tax Costs

The Motion for Attorney Fees filed by

Defendant is denied. The Motion to Tax Costs filed by Plaintiff is granted. The

Court awards costs in the reduced amount of \$2,755.80.

BACKGROUND

Plaintiff Justin Beimforde Real Estate

Broker, Inc. (Plaintiff) filed this action against William M. Lengyel

(Defendant), alleging that two listing agreements engaged Plaintiff as the

exclusive agent for the sale of two parcels and that Defendant breached them by relisting the parcels with another broker, who received the commission when the parcels sold.

The causes of action in the First

Amended Complaint (FAC) are: (1) Breach of Contract; and (2) Breach of Contract.

Defendant filed a Motion for Attorney

Fees and a Memorandum of Costs. Plaintiff filed an Opposition to the Motion for Attorney Fees and a Motion to Tax Costs. Defendant filed an Opposition to the Motion to Tax Costs.

The parties previously litigated an

action for declaratory relief, case No. 21STLC03615, in which the court held the agreements valid and enforceable and entered judgment in Plaintiff's favor.

Plaintiff voluntarily dismissed this action with prejudice before trial.

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) A “[p]revailing party” includes “a defendant in whose favor a dismissal is entered.” (Code Civ. Proc., § 1032, subd. (a)(4).)

Code of Civil Procedure section 1033.5, subdivision (a) enumerates allowable costs, and subdivision (b) lists items not allowable as costs except when expressly authorized by law. Subdivision (c)(4) provides: “Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” Allowable costs must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(2), (3).)

“In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. ‘If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.’ [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.” (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29 (Foothill-De Anza).) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774 (Ladas).) Because the right to costs is governed strictly by statute, “a court has no discretion to award costs not statutorily authorized.” (Ibid.)

ANALYSIS

I. Prevailing Party

First, Defendant argues that the parties’ listing agreements make him the prevailing party because Plaintiff dismissed the action. (Fees Mot. at p. 3:11-13.) Defendant seeks \$151,765.00 in

fees and costs. (Fees Mot. at p. 6:7-8; Retz Decl. ¶ 10.) Paragraph 10.3 of each agreement provides in relevant part: "In the event of litigation or arbitration between Owner and Agent arising under or relating to this Agreement or the Property, the prevailing party shall be paid its attorneys' fees and costs by the losing party. The term 'Prevailing Party' shall include, without limitation, one who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other party of its claim or defense." (Retz Decl. ¶ 3, Ex. 2, § 10.3; Mitchell Decl. ISO Opp. ¶ 2, Exs. A & B.)

A. Costs

A defendant in whose favor a dismissal is entered is a prevailing party, and a prevailing party recovers costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b).) Here, Plaintiff's voluntary dismissal was entered. (Retz Decl. ¶ 2, Ex. 1.) Defendant is therefore the prevailing party for costs.

B. Attorney Fees

Civil Code section 1717, subdivision

(b)(2) provides: "Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section." The California Supreme Court construes that subdivision "as overriding or nullifying conflicting contractual provisions, such as provisions expressly allowing recovery of attorney fees in the event of voluntary dismissal or defining 'prevailing party' as including parties in whose favor a dismissal has been entered. When a plaintiff files a complaint containing causes of action within the scope of section 1717 (that is, causes of action sounding in contract and based on a contract containing an attorney fee provision), and the plaintiff thereafter voluntarily dismisses the action, section 1717 bars the defendant from recovering attorney fees incurred in defending those causes of action, even though the contract on its own terms authorizes recovery of those fees." (Santisas v. Goodin (1998) 17 Cal.4th 599, 617 (Santisas).)

Both the original Complaint and the

First Amended Complaint plead only breach of the listing agreements. (Retz Decl. ¶ 4, Ex. 3; FAC ¶¶ 18, 25.) The action therefore sounded in contract, and falls within Civil Code section 1717. The carve-out Santisas recognized

for fees incurred defending tort or other noncontract claims does not apply. (Santisas, supra, 17 Cal.4th at pp. 602, 617.)

Here, Plaintiff voluntarily dismissed the action. Civil Code section 1717, subdivision (b)(2) therefore bars an award of attorney fees on the contract claims. Paragraph 10.3 does not change that result. Accordingly, the Motion for Attorney Fees is denied. Because no fees are awarded, the Court does not reach Plaintiff's objections to the reasonableness of Defendant's billing records or Defendant's request for fees against Justin Beimforde individually.

II. Specific

Costs

Finally, Defendant seeks \$4,747.86 in costs. Plaintiff objects to specific items totaling \$1,992.06, as not recoverable or not reasonably incurred. (Tax Mot. at p. 10.)

Defendant argues throughout his Opposition that the challenged costs are recoverable under paragraph 10.3, because the parties agreed to recover costs without limitation. (Opp. to Tax Mot. at pp. 5, 6.) Defendant is the prevailing party for costs, as discussed above. Statute fixes what a prevailing party may recover as costs, however, and a court has no discretion to award costs the statute does not authorize. (Ladas, supra, 19 Cal.App.4th at p. 774.) Litigants may not, by contract, expand the statutory definition of recoverable costs. (Fairchild v. Park (2001) 90 Cal.App.4th 919, 929-930.) Therefore, Code of Civil Procedure section 1033.5 governs allowable costs.

A. Conceded Item

The invoice supporting item 1s, an \$18.75 charge, bears billing code S-1926/Chia and case No. CGC-24-611610, a San Francisco Superior Court matter captioned Chia v. Chia. (Mem. of Costs, Attach. 1, Filing and Motion Fees.) Defendant concedes that he included the charge by mistake and withdraws it. (Retz Decl. ISO Opp. ¶ 4.) Item 1s, \$18.75, is taxed.

B. Prior Action Items

Plaintiff objects that items 1a, 1b, and 15a through 15e predate the Complaint in this action, and that the invoices supporting items 1b, 1c, 1d, 1e, and 1f bear the declaratory relief action's case number. Defendant responds that the actions were related, that the Court ordered Plaintiff to file a notice of related cases (Retz Decl. ISO Opp. ¶ 5, Ex. A), and that expenses referencing the related action were reasonably necessary to the defense of this action. (Opp. to Tax Mot. at pp. 3-4.)

Code of Civil Procedure section 1032

awards a prevailing party the costs of the action in which it prevailed.

Charges incurred in litigating the declaratory relief action are that action's costs. Plaintiff prevailed in that action. (Mitchell Decl. ISO Mot. ¶ 2.) An order relating two cases neither consolidates them nor converts one action's expenses into the other's. In any event, Plaintiff filed the Notice of Related Case the Court had required, and the Court ordered that the two cases are not related.

Here, items 1a, 1b, and 15a through 15e were incurred before the Complaint in this action was filed. The expense report for item 1a is dated October 18, 2022, and identifies the matter as No. 21STLC03615; the invoice for item 1b is dated June 14, 2023, and bears the same case number; and the receipts for items 15a through 15e are dated October 31, 2022. (Mem. of Costs, Attachs. 1, 15, Filing and Motion Fees, Other.) The receipt for item 15a records a purchase in case No. BC678139, Amir Yazdi v. Elite Coastal Construction Inc., which is neither this action nor the declaratory relief action. The accompanying expense report nevertheless bills the charge to this client matter.

The invoices supporting items 1c, 1d, 1e, and 1f identify the declaratory relief action and describe papers filed in support of a motion to quash service of summons and to vacate entry of default. (Mem. of Costs, Attach. 1, Filing and Motion Fees.) No such motion was ever filed in this action.

These items are not costs of this litigation. The Court taxes them in the total amount of \$162.55: item 1a, \$2.00; item 1b, \$43.25; item 1c, \$17.15; item 1d, \$12.95; item 1e, \$17.15; item 1f, \$42.25; item 15a, \$1.00; item 15b, \$1.00; item 15c, \$2.00; item 15d, \$21.80; and item 15e, \$2.00.

C. Courtesy Copies

Plaintiff challenges the courtesy copy

components of items 1j, 1m, 1t, 1ac, 1ae, and 1ag, and item 5a in full, on the ground that these charges were miscategorized as filing or service fees and were unnecessary. Each of the six One Legal invoices bills a separate line for “CCD - Standard Courtesy Copy, Zone 1,” at \$50.00 on the first three and \$60.00 on the last three. (Mem. of Costs, Attach. 1, Filing and Motion Fees.) Item 5a, \$129.90, appears on the worksheet as a charge for service of process, naming “LASC Dept. 55” as the person served and specifying “Courtesy Copy.” The supporting invoice bills priority morning delivery. It instructs the vendor to “DELIVER COURTESY COPIES ... A.M. TO DEPT 55 MOSK.” (Mem. of Costs, item 5a, Service of Process.) Defendant responds that the charges were incurred in connection with filings made throughout the litigation and are allowable under Code of Civil Procedure section 1033.5, subdivisions (a)(1) and (a)(4). (Opp. to Tax Mot. at p. 4.)

A charge to deliver a courtesy copy of

a filed document to the courtroom is neither a fee paid to the clerk for filing nor a fee for service of process, so those subdivisions do not apply. Courtesy copy charges fall within the Court’s discretion under subdivision (c)(4). A discretionary item must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).)

Here, the Courtroom Information for

Department 515 states, “[t]he Court does not need courtesy copies of filings unless it makes a specific request.” (Courtroom Information, Super. Ct. L.A. County, lacourt.ca.gov.) The Courtroom Information for Department 55 stated the same at the time these charges were incurred. Defendant does not contend that the Court requested a copy of any of these filings. The Court taxes the courtesy copy components of items 1j, 1m, and 1t at \$50.00 each, of items 1ac, 1ae, and 1ag at \$60.00 each, and item 5a in full at \$129.90, for a total of \$459.90.

D. Court Reporter Fee

Plaintiff argues that item 11a, a

\$1,020.00 court reporter fee, is insufficiently described because it is unclear what statute authorized the fee and whether a transcript charge was included in

it.

Code of Civil Procedure section 1033.5, subdivision (a)(11) allows a prevailing party to recover “[c]ourt reporter fees as established by statute.” The objection put the item in issue, and the burden of establishing the charge shifted to Defendant. (Ladas, supra, 19 Cal.App.4th at p. 774.)

Here, the supporting invoice is the only description of this charge in the record. It bills a single line, “Court Reporter’s Appearance for Motion to Quash Hearing / Dept. 19,” gives a job date of September 7, 2023, and identifies the matter as case No. 21STLC03615. (Mem. of Costs, item 11a, Court Reporter.) This item of cost was incurred in the prior declaratory relief action and, for the reasons stated above is not compensable here. Item 11a is taxed in the amount of \$1,020.00.

E. Document Retrieval

Plaintiff objects to items 1q, 1aa, 15f, 15g, and 15i through 15p as improper and unnecessary document retrieval fees, and adds that Defendant and his counsel already possessed the records purchased by items 15f and 15i. Defendant responds that the charges were incurred to “investigate factual issues,” to “investigate Plaintiff’s allegations,” and to obtain court records, pleadings, minute orders, Secretary of State filings, and other publicly available records. (Opp. to Tax Mot. at pp. 5, 6.)

Purchasing a copy of a record is not among the items Code of Civil Procedure section 1033.5, subdivision (a) allows. The prima facie effect of a verified memorandum extends only to items that are statutorily allowed and facially proper, so it does not attach here. The burden of showing these charges reasonable and necessary rested with Defendant. (Foothill-De Anza, supra, 158 Cal.App.4th at p. 29.)

Here, items 1q, 1aa, 15g, and 15j purchased copies of the Complaint and of three minute orders filed in this action. Items 15f and 15i purchased the complaint and the judgment in the declaratory relief action. (Mem. of Costs, Attachs. 1, 15, Filing and Motion Fees, Other.) Each of those papers was filed or served in an action in which Defendant’s counsel appeared. The minute order Defendant submits with his

Opposition carries the clerk's certificate of mailing to counsel's office.

(Retz Decl. ISO Opp., Ex. A.) The Court finds that these six charges were convenient rather than reasonably necessary to the conduct of this litigation, and taxes item 1q, \$3.00; item 1aa, \$12.20; item 15f, \$20.20; item 15g, \$40.00; item 15i, \$19.40; and item 15j, \$4.00, in the total amount of \$98.80.

Defendant describes items 15k through

15p as incurred to investigate Plaintiff's allegations. Code of Civil Procedure section 1033.5, subdivision (b)(2) prohibits recovery of "[i]nvestigation expenses in preparing the case for trial." (See Ladas, supra, 19 Cal.App.4th at pp. 776-777 [fees paid to obtain documents from the Department of Insurance, which an expert used in preparing to testify, should have been stricken under subdivision (b)(1), subdivision (b)(2), or both].) Subdivision (c)(4) does not confer discretion to allow an item subdivision (b) prohibits. (Id. at p. 774.)

The Court taxes item 15k, \$15.00; item 15l, \$50.00; item 15m, \$10.00; item 15n, \$5.00; item 15o, \$10.00; and item 15p, \$122.06, for a total reduction of \$212.06.

F. Parking

Plaintiff contends that item 15h, \$20.00 for "Parking in LA," is insufficiently described and unnecessary. Code of Civil Procedure section 1033.5, subdivision (a)(3) allows travel expenses to attend depositions. The charge is not a travel expense to attend a deposition. Subdivision (b) does not prohibit it, so the charge falls within the Court's discretion under subdivision (c)(4). Here, the charge is dated September 7, 2023, the date of the Department 19 appearance billed on the court reporter's invoice in the declaratory relief action. That travel was to a proceeding in another action. The Court declines to allow the charge. Item 15h, \$20.00, is taxed.

The taxed items total \$1,992.06. Of the \$4,747.86 claimed, \$2,755.80 remains.

CONCLUSION

The Motion for Attorney Fees filed by Defendant is denied. The Motion to Tax Costs filed by Plaintiff is granted. The

Court awards costs in the reduced amount of \$2,755.80.